

		its response should so state. Defendant cannot hedge its bets by, at the same time, asserting its investigation is not complete
4.	2023-1357031 Murata vs. South Coast Real Estate & Property Management, Inc.	Defendant South Coast Real Estate & Property Management, Inc.'s Motion to Dismiss Plaintiffs' Complaint is denied. Plaintiffs move, under CCP section 389(b), for an order dismissing the "First Amended Complaint" for failure to join and serve and indispensable party. CCP section 389 governs compulsory joinder and the indispensable party doctrine (Code Civ. Proc., § 389). Under section 389, subdivision (a), a person <i>must</i> be joined as a party if, in their absence, complete relief cannot be accorded among those already parties, or if the person claims an interest relating to the subject of the action and is so situated that disposition in their absence may as a practical matter impair or impede their ability to protect that interest, or leave existing parties subject to a substantial risk of incurring double, multiple, or otherwise inconsistent obligations. "If he has not been so joined, the court shall order that he be made a party." (Code Civ. Proc., § 389, subd. (a)). If such a person <i>cannot</i> be joined, then the court must determine "whether in equity and good conscience" the action should proceed or be dismissed without prejudice. The court should consider factors such as prejudice to absent parties, whether prejudice can be lessened, adequacy of judgment, and whether the plaintiff will have an adequate remedy if the action is dismissed (Code Civ. Proc., § 389, subd. (b)). A party objecting to a "defect or misjoinder of parties" may do so under CCP section 430.10, subdivision (d), "by demurrer or answer." (Code Civ. Proc., § 430.10, subd. (d).) If that party "fails to object to the pleading, either by demurrer or answer, that party is deemed to have waived the objection unless it is an objection that the court has no jurisdiction of the subject of the cause of action alleged in the pleading or an objection that the pleading does not state facts sufficient to constitute a cause of action." (Code Civ. Proc., § 430.80, subd. (a).) "[T]he 'failure to join 'indispensable' parties does not deprive a court of the power to make a legally binding adjudication between the parties properly before it"; in other words, it is "not 'a jurisdictional defect' in the fundamental sense." (<i>Doe v. Regents of University of California</i> (2022) 80 Cal.App.5th 282, 305 [internal citations omitted].) This is because an indispensable party "is not bound by a judgment in an action in which he was not joined." (<i>Ibid.</i>) "It is for reasons of equity and convenience, and not because it is without power to proceed, that the court should not proceed with a case where it determines that an "indispensable" party is absent and cannot be joined." (<i>Sierra Club, Inc. v. California Coastal Com.</i> (1979) 95 Cal.App.3d 495, 500.)

Here, the Court finds the motion is untimely. Defendant does not claim to be the “indispensable party” that was not properly joined in this action. Rather, Defendant objects on the basis that “plaintiffs are seeking relief from the property manager for the property, a non-owner”; and, that the owner cannot be added, because the statute of limitations has run on any cause of action that Plaintiffs could bring against the owner. (Mot. at pp. 4-5.) Defendant did not demur on this ground nor raise this objection in its answer (ROA 13), accordingly, any objection based on nonjoinder has been waived. (Code Civ. Proc., § 430.80, subd. (a).)

Second, Defendant is relying on matters outside of the pleadings, and that are not subject to judicial notice, for its assertion that it is not the “owner” of the subject premises. However, Plaintiffs allege in the Complaint that “defendants ... owned, maintained, inspected, controlled, repaired, managed, and/or operated” the Property. (See Compl. at p. 5, ¶ 5.) Even if there is ambiguity in the allegations, a motion to dismiss is “generally subject to the rules pertaining to a general demurrer. Thus, the motion should be confined to matters appearing on the face of the pleading under attack or of which the court can take judicial notice.” (Cal. Prac. Guide Civ. Pro. Before Trial at ¶ 7:376.) The Court cannot take judicial notice of the truth of Defendant’s discovery responses, wherein it asserts someone else is the owner of the Property, either. (See *Big Valley Band of Pomo Indians v. Superior Court* (2005) 133 Cal.App.4th 1185, 1192-1193.)

Lastly, even if the Court agreed that Defendant was not the owner of the Property and that the owner was an indispensable property, dismissal would not be appropriate. Defendant argues that the owner cannot be added through Doe amendment and that the statute of limitations has otherwise expired. (Mot. at pp. 5-6.) This argument is not persuasive because Defendant has not shown that a Doe amendment would not be proper; and, the statute of limitations is an affirmative defense that can be raised, or waived, by the party asserting it (i.e., the owner, not Defendant). Thus, even if a timely objection had been raised as to the alleged nonjoinder, the proper remedy would be for the court to order Plaintiff to join the owner. After the owner is named as a defendant, then, *the owner* can bring a motion to dismiss based on section 389(b), i.e., that it cannot be joined because of the statute of limitations and that the action should be dismissed without it. (See, e.g., *Sierra Club, Inc. v. California Coastal Com.* (1979) 95 Cal.App.3d 495, 502.)

Defendant’s argument that a judgment rendered in the owner’s absence would be prejudicial is not persuasive because, as explained, above, an indispensable party would not be bound by a judgment in an action in which that party was not joined. (*Doe v. Regents of University of California* (2022) 80 Cal.App.5th 282, 305

		[an indispensable party “is not bound by a judgment in an action in which he was not joined”]; see <i>Sierra Club, Inc. v. California Coastal Com.</i> (1979) 95 Cal.App.3d 495, 501 [indispensable party “would not be bound by any judgment adversely affecting his permit and would be free to collaterally attack any such judgment”].) For all the foregoing reasons, the motion to dismiss is denied. Plaintiffs shall give notice of the ruling.
5.	2023-1365581 Morales vs. RCR Construction Services	Plaintiffs Deborah Morales’ and the Morales Family Trust’s motion to hold Defendants Mari C. Drewry and Devoted Insurance Company in contempt and request for monetary sanctions is denied. “Disobedience of any lawful judgment, order, or process of the court” is contempt of the authority of the court. (Code Civ. Proc., § 1209, subd. (a)(5).) “The substantive issues involved in a contempt proceeding are (1) the rendition of a valid order, (2) actual knowledge of the order, (3) ability to comply, and (4) willful disobedience.” (<i>Conn v. Superior Court</i> (1987) 196 Cal.App.3d 774, 784.) “A contempt proceeding [for indirect contempt] is commenced by the filing of an affidavit and a request for an order to show cause.” (<i>Cedars-Sinai Imaging Medical Group v. Superior Court</i> (2000) 83 Cal.App.4th 1281, 1286 [citing Code Civ. Proc., § 1211].) “After notice to the opposing party’s lawyer, the court (if satisfied with the sufficiency of the affidavit) must sign an order to show cause re contempt in which the date and time for a hearing are set forth.” (<i>Id.</i> at 1286.) This motion concerns Plaintiffs’ written discovery served on Defendants, to which Defendants did not respond. The Court granted motions to compel on 12/3/25 ordering Defendants to serve verified responses and pay \$2,400 in sanctions. Defendants did not pay the sanctions or serve the ordered responses. (Dariev Decl., ¶¶ 5-8.) Plaintiffs have demonstrated a valid court order, Defendants’ knowledge of the order, Defendants’ ability to render compliance, and Defendants’ willful disobedience. If the Court were to grant Plaintiffs’ motion, the next step would be to sign the OSC re contempt and hold a hearing with Defendants present. However, the Court questions what the purpose of a contempt hearing would be under the circumstances. It appears that